



Telecommunications (Consumer Protection and Service Standards) Amendment Act (No. 1) 2000

No. 95, 2000



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**An Act to amend the *Telecommunications
(Consumer Protection and Service Standards) Act
1999*, and for related purposes**

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An Act to amend the *Telecommunications (Consumer Protection and Service Standards) Act 1999*, and for related purposes

[Assented to 30 June 2000]

The Parliament of Australia enacts:

1 Short title

This Act may be cited as the *Telecommunications (Consumer Protection and Service Standards) Amendment Act (No. 1) 2000*.

2 Commencement

- (1) Subject to this section, this Act commences on the day on which it receives the Royal Assent.
- (2) Schedule 1 commences, or is taken to have commenced, on 1 July 2000.

3 Schedule(s)

Subject to section 2, each Act that is specified in a Schedule to this Act is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this Act has effect according to its terms.

Schedule 1—Amendments relating to the universal service regime

Part 1—Amendments

Telecommunications (Consumer Protection and Service Standards) Act 1999

1 Subsection 5(2) (paragraph (a) of the definition of *universal service provider*)

Omit “the”, substitute “a”.

2 Subsection 20(1)

Omit “is the”, substitute “is a”.

3 Subsection 20(1) (note)

Repeal the note.

4 Subsection 20(2)

Omit “is the”, substitute “is a”.

5 Subsection 20(2) (note)

Repeal the note.

6 After subsection 20(2)

Insert:

(2A) In deciding whether to make a declaration under subsection (1) or (2) in relation to a person and an area, the Minister is limited to considering factors that are relevant to achieving the objects of this Act.

(2B) If an agreement under section 56 or 57 of the *Telstra Corporation Act 1991* made between the Commonwealth and a person (including a State or Territory) is expressed to also have effect for the purposes of this subsection, the Minister is taken to have made (and to properly have made) a declaration (the ***deemed declaration***) under subsection (2) that the person is a regional

universal service provider for the service area constituted by the area to which the agreement is expressed to apply. The deemed declaration takes effect as follows:

- (a) if there is a single commencement date (see subsection (2C)) for the area—the deemed declaration takes effect on that commencement date; or
 - (b) if there are different commencement dates for different parts of the area—the deemed declaration takes effect for those different parts of the area on those different dates.
- (2C) The commencement date or dates for the area to which an agreement referred to in subsection (2B) is expressed to apply is or are as follows:
- (a) if the agreement specifies a single date as the commencement date for the area—subject to paragraph (c), the commencement date for the area is the specified date;
 - (b) if the agreement specifies different dates as the commencement dates for different parts of the area—subject to paragraph (c), the commencement dates for those parts of the area are the dates so specified;
 - (c) if a determination under subsection (2D) specifies a date as the commencement date for the area, or part of the area—the commencement date for the area, or the part of the area, as the case requires, is the date so specified (regardless of any dates specified in the agreement).
- A commencement date cannot be a date before the agreement is made or before the commencement of this subsection.
- (2D) The Minister may make a written determination specifying a date as the commencement date for the area, or part of the area, to which an agreement referred to in subsection (2B) is expressed to apply. A copy of the determination must be published in the *Gazette*.

7 Subsections 20(4), (5), (6), (7) and (8)

Repeal the subsections, substitute:

- (4) A declaration under subsection (1) or (2) takes effect on the day specified for the purpose in the declaration. That day must not be a day before the declaration is made.

- (5) A revocation of a declaration under subsection (1) or (2) takes effect on the day specified for the purpose in the instrument of revocation. That day must not be a day before the instrument is made.

8 Subsection 20(10)

Omit “A declaration under this section”, substitute “Subject to subsection (10A), a declaration under subsection (1) or (2)”.

9 After subsection 20(10)

Insert:

- (10A) Subsection (10) does not apply to a declaration that the Minister is taken by subsection (2B) to have made. Instead, a notice must be published in the *Gazette* advising that the person concerned is a regional universal service provider for the area concerned and of the relevant commencement date or dates.

Note: Subsection (10) does however apply to a variation or revocation of such a declaration.

10 Subsection 21(1)

Omit “The national universal service provider is the”, substitute “A national universal service provider is a”.

11 Subsection 21(2)

Omit “is the”, substitute “is a”.

12 Subsection 21(2) (note)

Repeal the note, substitute:

Note: If a carrier that is the sole regional universal service provider for a particular service area ceases to be a regional universal service provider for that area and is not replaced as a regional universal service provider for that area by another carrier, the carrier, or each carrier, that is a national universal service provider automatically becomes a universal service provider for that area.

13 Subsection 21(5)

Omit “The universal service provider”, substitute “A universal service provider”.

14 Subsection 22(1)

Omit “the national universal service provider”, substitute “a national universal service provider”.

15 At the end of subsection 22(1)

Add “(or any part of a specified financial year)”.

16 Subsection 22(4)

Repeal the subsection, substitute:

- (4) If a system has been determined under this section, the Minister may use that system for the purposes of deciding what carrier should be declared under subsection 20(1) in a particular situation, or may make that decision on some other basis.

17 At the end of subsection 23(1)

Add “(or any part of a specified financial year)”.

18 Subsection 23(4)

Repeal the subsection, substitute:

- (4) If a system has been determined under this section, the Minister may use that system for the purposes of deciding what carrier should be declared under subsection 20(2) in a particular situation, or may make that decision on some other basis.

19 After section 24

Insert:

24A Former universal service provider may be required to provide information to current universal service provider

- (1) This section applies if:
- (a) a person (the **former provider**) ceases to be a universal service provider for a particular area (the **relevant area**) and another person (the **current provider**) is declared, by declaration that takes effect at the time of that cessation or within the next 6 months, to be a universal service provider for some or all of that area; or
 - (b) a person (the **former provider**) ceases to be a universal service provider for a particular area (the **relevant area**) and another person (the **current provider**) who, before that
-

cessation, was also a universal service provider for some or all of that area continues after that cessation to be a universal service provider for some or all of that area.

Note: The declaration referred to in paragraph (a) may be a declaration made before, at the same time as, or after the time when the former provider ceases to be a universal service provider.

- (2) The current provider may, by written notice given to the former provider, require the former provider to give to the current provider specified information of the kind referred to in subsection (3). A notice of this kind cannot be given more than 6 months after:
- (a) if paragraph (1)(a) applies:
 - (i) the later of the day on which the declaration referred to in paragraph (1)(a) was made and the day on which that declaration takes effect; or
 - (ii) if both of those things happen on the same day—that day; or
 - (b) if paragraph (1)(b) applies—the day on which the former provider ceases to be a universal service provider for the relevant area.

Note: If paragraph (1)(a) applies, a notice under this subsection may be given by the current provider even if the declaration referred to in that paragraph has not yet taken effect.

- (3) The information that may be required to be given must be information that will assist the current provider in doing something that the current provider is or will be required or permitted to do by or under a provision of this Part. The notice must identify the doing of that thing as the purpose for which the information is required.

Note 1: If, for example, information about service location and customer contact details will assist the current provider in fulfilling its obligation under subsection 21(5), the former provider may be required to provide that kind of information.

Note 2: See also subsection (5), which allows the Minister to determine that a specified kind of information is information referred to in this subsection.

- (4) If a requirement made by a notice under subsection (2) is reasonable, the former provider must comply with the requirement as soon as practicable after receiving the notice. However, if the requirement is unreasonable, the former provider does not have to comply with it.

- (5) The Minister may make a written determination to the effect that, either generally or in a particular case, information of a kind specified in the determination is taken to be information that will assist a person in doing a specified thing that the person is or will be required or permitted to do by or under a provision of this Part. The determination has effect accordingly.
- (5A) If a former provider has been given notice of a requirement under subsection (2), the ACA may, in writing, direct the former provider to comply with the requirement or with specified aspects of the requirement.
- (5B) The former provider must comply with the direction.
- (5C) In deciding whether to give a direction under subsection (5A), the ACA must consider whether the requirement made by the notice given to the former provider is reasonable.
- (6) A determination under subsection (5) is a disallowable instrument for the purposes of section 46A of the *Acts Interpretation Act 1901*.

20 Subsection 25(1)

Repeal the subsection, substitute:

- (1) For the purposes of this section, there is a **multiple provider situation** if there are 2 or more national universal service providers.

21 Subsection 25(2)

Omit all the words from and including “The regulations” to and including “any such declared provider,”, substitute “The regulations may authorise the Minister to declare that this Act has effect, in relation to a provider in a multiple provider situation,”.

22 Subsection 25(2)

Omit “2 or more declared providers”, substitute “2 or more of the providers”.

23 Subsection 25(3)

Omit “this section”, substitute “regulations referred to in subsection (2)”.

24 Subsection 25(4)

Omit “any such declared providers”, substitute “any of the providers in a multiple provider situation”.

25 Subsection 26(1)

Repeal the subsection, substitute:

- (1) For the purposes of this section, there is a **multiple provider situation** if there are 2 or more regional universal service providers for all or part of the same area.

26 Subsection 26(2)

Omit all the words from and including “The regulations” to and including “any such declared provider,”, substitute “The regulations may authorise the Minister to declare that this Act has effect, in relation to a provider in a multiple provider situation,”.

27 Subsection 26(2)

Omit “2 or more declared providers”, substitute “2 or more of the providers”.

28 Subsection 26(3)

Omit “this section”, substitute “regulations referred to in subsection (2)”.

29 Subsection 26(4)

Omit “any such declared providers”, substitute “any of the providers in a multiple provider situation”.

30 Subsection 26A(1)

After “carrier”, insert “or carriage service provider”.

31 Subsection 26A(1) (note)

Repeal the note.

32 Subsection 26A(2)

After “carrier”, insert “or carriage service provider”.

33 Subsection 26A(2) (note)

Repeal the note.

34 After subsection 26A(2)

Insert:

- (2A) In deciding whether to make a declaration under subsection (1) or (2) in relation to a person and an area, the Minister is limited to considering factors that are relevant to achieving the objects of this Act.

35 Subsections 26A(4), (5), (6) and (7)

Repeal the subsections, substitute:

- (4) A declaration under subsection (1) or (2) takes effect on the day specified for the purpose in the declaration. That day must not be a day before the declaration is made.
- (5) A revocation of a declaration under subsection (1) or (2) takes effect on the day specified for the purpose in the instrument of revocation. That day must not be a day before the instrument is made.

36 After subsection 26A(8)

Insert:

- (8A) If:
- (a) a declaration is in force under subsection (1) or (2) in relation to a particular carriage service provider that is not a carrier;
and
 - (b) at a particular time, the carriage service provider ceases to be such a provider;
- the declaration ceases to be in force at that time.

37 Before subsection 26C(1)

Insert:

- (1A) In this section, a reference to an **eligible person** is a reference to a carrier or a carriage service provider.

38 Subsection 26C(1)

Omit “carriers”, substitute “eligible persons”.

39 At the end of subsection 26C(1)

Add “(or any part of a specified financial year)”.

40 Subsection 26C(2)

Omit “carrier”, substitute “eligible person”.

41 Paragraphs 26C(2)(a) and (b)

Omit “carrier’s”, substitute “person’s”.

42 Subsection 26C(4)

Repeal the subsection, substitute:

- (4) If a system has been determined under this section, the Minister may use that system for the purposes of deciding what eligible person should be declared under subsection 26A(1) in a particular situation, or may make that decision on some other basis.

43 Before subsection 26D(1)

Insert:

- (1A) In this section, a reference to an **eligible person** is a reference to a carrier or a carriage service provider.

44 Subsection 26D(1)

Omit “carriers”, substitute “eligible persons”.

45 At the end of subsection 26D(1)

Add “(or any part of a specified financial year)”.

46 Subsection 26D(2)

Omit “carrier”, substitute “eligible person”.

47 Paragraphs 26D(2)(a) and (b)

Omit “carrier’s”, substitute “person’s”.

48 Subsection 26D(4)

Repeal the subsection, substitute:

- (4) If a system has been determined under this section, the Minister may use that system for the purposes of deciding what eligible

person should be declared under subsection 26A(2) in a particular situation, or may make that decision on some other basis.

49 After section 26E

Insert in Division 3A of Part 2:

26F Former digital data service provider may be required to provide information to current digital data service provider

(1) This section applies if:

- (a) a person (the **former provider**) ceases to be a digital data service provider for a particular area (the **relevant area**) and another person (the **current provider**) is declared, by declaration that takes effect at the time of that cessation or within the next 6 months, to be a digital data service provider for some or all of that area; or
- (b) a person (the **former provider**) ceases to be a digital data service provider for a particular area (the **relevant area**) and another person (the **current provider**) who, before that cessation, was also a digital data service provider for some or all of that area continues after that cessation to be a digital data service provider for some or all of that area.

Note: The declaration referred to in paragraph (a) may be a declaration made before, at the same time as, or after the time when the former provider ceases to be a digital data service provider.

(2) The current provider may, by written notice given to the former provider, require the former provider to give to the current provider specified information of the kind referred to in subsection (3). A notice of this kind cannot be given more than 6 months after:

- (a) if paragraph (1)(a) applies:
 - (i) the later of the day on which the declaration referred to in paragraph (1)(a) was made and the day on which that declaration takes effect; or
 - (ii) if both of those things happen on the same day—that day; or
- (b) if paragraph (1)(b) applies—the day on which the former provider ceases to be a digital data service provider for the relevant area.

Note: If paragraph (1)(a) applies, a notice under this subsection may be given by the current provider even if the declaration referred to in that paragraph has not yet taken effect.

- (3) The information that may be required to be given must be information that will assist the current provider in doing something that the current provider is or will be required or permitted to do by or under a provision of this Part. The notice must identify the doing of that thing as the purpose for which the information is required.

Note 1: If, for example, information about service location and customer contact details will assist the current provider in fulfilling its obligation under subsection 26B(4) or (5), the former provider may be required to provide that kind of information.

Note 2: See also subsection (5), which allows the Minister to determine that a specified kind of information is information referred to in this subsection.

- (4) If a requirement made by a notice under subsection (2) is reasonable, the former provider must comply with the requirement as soon as practicable after receiving the notice. However, if the requirement is unreasonable, the former provider does not have to comply with it.
- (5) The Minister may make a written determination to the effect that, either generally or in a particular case, information of a kind specified in the determination is taken to be information that will assist a person in doing a specified thing that the person is or will be required or permitted to do by or under a provision of this Part. The determination has effect accordingly.
- (5A) If a former provider has been given notice of a requirement under subsection (2), the ACA may, in writing, direct the former provider to comply with the requirement or with specified aspects of the requirement.
- (5B) The former provider must comply with the direction.
- (5C) In deciding whether to give a direction under subsection (5A), the ACA must consider whether the requirement made by the notice given to the former provider is reasonable.
- (6) A determination under subsection (5) is a disallowable instrument for the purposes of section 46A of the *Acts Interpretation Act 1901*.

50 Subsection 27(2)

Omit “the universal service provider”, substitute “a universal service provider”.

51 Section 28

Omit “the universal service provider”, substitute “a universal service provider”.

51A After paragraph 32(1)(a)

Insert:

(aa) the plan addresses the needs of people with a disability; and

51B At the end of section 32

Add:

(3) In this section:

disability has the same meaning as in the *Disability Discrimination Act 1992*.

52 Paragraph 34(1)(a)

Omit “for the area”, substitute “concerned”.

53 Subsection 34(3)

Omit “for the area”, substitute “concerned”.

54 Paragraph 35(1)(b)

Omit “for the area”, substitute “concerned”.

55 Subsection 38(2)

Omit “for the area”, substitute “concerned”.

56 Section 39

Omit “for the area”, substitute “concerned”.

57 Subsection 41(1)

Omit “the universal service provider”, substitute “a universal service provider”.

58 Paragraph 43(2)(b)

Omit “the universal service provider”, substitute “a universal service provider”.

59 Subsection 49(1)

Repeal the subsection, substitute:

- (1) This section applies if:
- (a) a person is a universal service provider on the first day (the **relevant day**) of a financial year; or
 - (b) a person becomes a universal service provider on a later day (the **relevant day**) in a financial year.

60 Subsection 49(2)

Omit “Within 60 days after the beginning of the financial year”, substitute “Subject to subsection (2A), within 60 days after the relevant day”.

61 Paragraph 49(2)(a)

Omit “the universal service provider”, substitute “a universal service provider”.

62 After subsection 49(2)

Insert:

- (2A) If paragraph (1)(b) applies, the notice under subsection (2) must not be given more than 45 days after the end of the financial year concerned.

63 Subsection 50(1)

Omit “The ACA”, substitute “Subject to subsection (1A), the ACA”.

64 After subsection 50(1)

Insert:

- (1A) If:
- (a) subsection 49(2A) applies to a notice given under section 49; and
 - (b) the 60 day period referred to in subsection (1) of this section would end more than 75 days after the end of the financial year concerned;

the ACA must, in dealing with the notice, comply with this section within 75 days after the end of that financial year.

65 Subparagraph 50(2)(b)(i)

Omit “the universal service provider”, substitute “a universal service provider”.

66 Subsection 51(1)

Repeal the subsection, substitute:

(1) This section applies if:

- (a) a person is a universal service provider on the first day of a financial year; or
- (b) a person becomes a universal service provider on a later day in a financial year.

67 Paragraph 51(2)(a)

Omit “the universal service provider”, substitute “a universal service provider”.

68 Before paragraph 57(1)(a)

Insert:

- (aa) if a determination under subsection (1A) covering the person and that financial year has effect for the person and the financial year—the person’s net universal service cost for the financial year is:
 - (i) if the determination specifies an amount as the person’s net universal service cost for the financial year—that amount; or
 - (ii) if the determination specifies a method for working out the person’s net universal cost for the financial year—the amount worked out in accordance with the determination;

69 Paragraphs 57(1)(a), (b), (c) and (d)

Omit “if:”, substitute “if paragraph (aa) does not apply and:”.

70 After subsection 57(1)

Insert:

- (1A) The Minister may make a written determination specifying:
- (a) an amount that is to be the net universal service cost for a specified person, or for each person in a specified class, for a specified financial year to which subsection (1) applies; or
 - (b) a method for working out the net universal service cost for a specified person, or for each person in a specified class, for a specified financial year to which subsection (1) applies.

Note 1: In providing the Minister with advice about the specification of an amount or method in a determination proposed to be made under this subsection, the ACA must not take into account any grant that has been or may be made to a person under section 56 or 57 of the *Telstra Corporation Act 1991*—see section 61AA.

Note 2: The Minister is obliged to get advice from the ACA about proposed determinations and some variations of determinations—see subsection (1F).

- (1B) A determination under subsection (1A) may be expressed to cover a single financial year or up to 3 successive financial years. In relation to the year, or each of the years, it purports to cover:
- (a) it has effect for the year whether it was made before or during the year, or (subject to paragraph (b)) after the end of the year; but
 - (b) it does not have effect for the year and a particular person if it was made after the making of an assessment under section 64 covering the financial year and the person.
- (1C) The amount specified in, or worked out under, a determination under subsection (1A) may be zero dollars.
- (1D) A copy of a determination under subsection (1A) must be published in the *Gazette*.
- (1E) If a determination under subsection (1A) is varied or revoked, the following paragraphs apply:
- (a) in the case of a variation:
 - (i) the variation has effect, for the year or each of the years to which it purports to apply, whether it was made before or during the year, or (subject to subparagraph (ii)) after the end of the year; but
 - (ii) it does not have effect for a year and a particular person if it was made after the making of an assessment under section 64 covering the financial year and the person; and

- (b) in the case of a revocation:
 - (i) the revocation has effect in relation to the year or each of the years covered by the determination, whether the revocation was made before or during the year, or (subject to subparagraph (ii)) after the end of the year; but
 - (ii) it does not have effect in relation to a year and a particular person if it was made after the making of an assessment under section 64 covering the financial year and the person.
- (1F) Before deciding whether to make or vary a determination under subsection (1A), the Minister must:
 - (a) direct the ACA to give the Minister advice about the proposed determination or variation; and
 - (b) consider the ACA's advice.However, this rule does not apply to a variation of a determination if the variation is of a minor technical nature.
- (1G) The ACA must comply with a direction under paragraph (1F)(a).
- (1H) Subsection (1F) does not, by implication, limit the Minister's powers under section 486 of the *Telecommunications Act 1997* (which deals with public inquiries).
- (1J) If:
 - (a) the Minister has received advice under subsection (1F) about a proposed determination or variation; and
 - (b) the determination or variation is not made in accordance with the advice;the Minister must:
 - (c) publish his or her reasons for departing from the advice in the *Gazette* within 14 days after making the determination; and
 - (d) cause copies of his or her reasons for departing from the advice to be laid before each House of the Parliament within 5 sitting days of that House after making the determination.

71 Subsection 57(2)

Omit "The formula is", substitute "For the purposes of paragraph (1)(d), the formula is".

72 At the end of subsection 57(2)

Add:

Note: In applying the formula, any grant that has been or may be made to a person under section 56 or 57 of the *Telstra Corporation Act 1991* must not be taken into account—see section 61AA.

73 Paragraph 57(3)(a)

Omit “the universal service provider”, substitute “a universal service provider”.

74 Subsection 57(4)

Omit “carrier”, substitute “universal service provider”.

75 At the end of subsection 57(9)

Add:

Note: A method specified in a determination under this subsection must not take into account any grant that has been or may be made to a person under section 56 or 57 of the *Telstra Corporation Act 1991*—see section 61AA.

76 Subsection 57(22)

After “subsection”, insert “(1A),”.

Note: The following heading to subsection (22) is inserted “*Miscellaneous matters*”.

77 At the end of subsection 60(1)

Add:

Note: A method or amount specified in a determination under this subsection must not take into account any grant that has been or may be made to a person under section 56 or 57 of the *Telstra Corporation Act 1991*—see section 61AA.

78 After section 61

Insert:

**61AA Grant under section 56 or 57 of *Telstra Corporation Act 1991*
not to be taken into account for certain purposes**

Any grant made that has been or may be made to a person under section 56 or 57 of the *Telstra Corporation Act 1991* must not be taken into account:

- (a) by the ACA in providing advice to the Minister (whether pursuant to a direction under subsection 57(22) or otherwise) about the specification of an amount or method in a determination proposed to be made under subsection 57(1A); or
- (b) in the application of the formula in subsection 57(2); or
- (c) in a method specified in a determination by the ACA under subsection 57(9); or
- (d) in a method, or in working out an amount, specified by the ACA in a determination under subsection 60(1).

79 Subsection 109(1)

Omit “the universal service provider” (wherever occurring), substitute “a universal service provider”.

80 Subsection 109(3)

Omit “the universal service provider” (wherever occurring), substitute “a universal service provider”.

Part 2—Application and transitional provisions

81 Definitions

In this Part:

amended Act means the *Telecommunications (Consumer Protection and Service Standards) Act 1999* as in force after the commencement.

commencement means the commencement of this Schedule.

old Act means the *Telecommunications (Consumer Protection and Service Standards) Act 1999* as in force immediately before the commencement.

82 New subsection 20(2B)

Subsection 20(2B) of the amended Act applies in relation to an agreement referred to in that subsection, whether made before, on or after the commencement.

83 New subsections 20(4) and (5) and old subsections 20(5) to (8)

- (1) Subsection 20(4) of the amended Act applies in relation to declarations referred to in that subsection that are made on or after the commencement.
- (2) Subsection 20(5) of the amended Act applies in relation to declarations made before, on or after the commencement.
- (3) Subsection 20(5) of the old Act continues to apply in relation to a declaration made before the commencement as if the subsection had not been repealed.
- (4) Subsection 20(6) of the old Act continues to apply to a revocation made before the commencement as if the subsection had not been repealed.
- (5) If subsection 20(7) or (8) of the old Act applied to 2 declarations (an original declaration and a fresh declaration) made before the commencement, but the fresh declaration had not taken effect, and the original declaration had not ceased to have effect, under that subsection by the commencement, that subsection continues to apply to those declarations as if it had not been repealed.

84 New subsections 26A(4) and (5) and old subsections 26A(4) to (7)

- (1) Subsection 26A(4) of the amended Act applies in relation to declarations referred to in that subsection that are made on or after the commencement.
- (2) Subsection 26A(5) of the amended Act applies in relation to declarations made before, on or after the commencement.
- (3) Subsection 26A(4) of the old Act continues to apply in relation to a declaration made before the commencement as if the subsection had not been repealed.
- (4) Subsection 26A(5) of the old Act continues to apply to a revocation made before the commencement as if the subsection had not been repealed.
- (5) If subsection 26A(6) or (7) of the old Act applied to 2 declarations (an original declaration and a fresh declaration) made before the commencement, but the fresh declaration had not taken effect, and the original declaration had not ceased to have effect, under that subsection by the commencement, that subsection continues to apply to those declarations as if it had not been repealed.

85 New section 61AA

Section 61AA of the amended Act applies in relation to the financial year in which the commencement occurs and later financial years.

*[Minister's second reading speech made in—
House of Representatives on 10 May 2000
Senate on 22 June 2000]*

(83/00)
